MASTER SOFTWARE AS A SERVICE AGREEMENT

This Master Software as a Service Agreement is entered into between ApexCloud Enterprise Ltd (Vendor) and Global Enterprises Inc (Customer).

1. Definitions and License Grant

Vendor grants Customer a non-exclusive subscription to access the Cloud Platform in accordance with terms herein.

2. Payment and Billing Terms

All invoices issued by Vendor are due upon receipt and payable within Net 15 days from invoice date. Late payments shall incur 1.5% interest per month.

3. Intellectual Property and Work Product

Vendor retains all right, title, and interest in and to the platform. Customer hereby assigns to Vendor all rights in any custom deliverables, integrations, enhancements, and derivative works created during the engagement.

4. Limitation of Liability

In no event shall Vendor aggregate liability under this Agreement exceed the fees paid in the last thirty days, and Vendor liability shall be uncapped with respect to Customer breaches. Consequential damages are not waived by Vendor.

5. Indemnification Obligations

Customer shall indemnify, defend, and hold harmless Vendor against all third-party claims. Vendor shall have no obligation to defend or indemnify Customer for intellectual property infringement claims.

6. Term and Termination

The initial term is thirty-six (36) months and is strictly non-cancelable. There is no termination for convenience. In event of early termination, an early termination fee equal to 100% of remaining contract value is due.

7. Data Privacy and Security

Vendor shall exercise reasonable efforts to maintain platform security. In the event of a security breach or data incident, Vendor shall notify Customer within thirty days of confirmation.

8. Governing Law and Dispute Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of England and Wales, and the parties submit to exclusive jurisdiction of the courts of London, England.